
2:00 PM **LINE 11**

25-CIV-10154

ROBERT FOLEY, ET AL VS. COBALT POLYMERS, ET AL

ROBERT FOLEY
COBALT POLYMERS

GEORGE MOSCHOPOULOS
YANO L. RUBINSTEIN

DEFENDANTS COBALT POLYMERS AND BARRY SCHNUR'S MOTION TO STRIKE VARIOUS PORTIONS OF COMPLAINT

TENTATIVE RULING:

Defendants Cobalt Polymers and Barry Schnur's Motion to Strike portions of plaintiff's Complaint is **DENIED**.

Defendants move to strike references to punitive damages and alter ego allegations from plaintiff's Complaint.

A. Punitive Damages

For punitive damages allegations to survive a motion to strike, a plaintiff must plead ultimate facts, rather than mere legal conclusions, showing that the defendant engaged in conduct constituting malice, oppression, or fraud as defined by Civil Code section 3294. Courts reviewing the ruling apply a de novo standard and read all allegations as a whole, in context, assuming their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253; *Today's IV, Inc. v. Los Angeles County Metro. Transportation Auth.* (2022) 83 Cal.App.5th 1137.)

Here, plaintiff points to his specific allegations of defendants' actions taken with knowledge of plaintiff's right to be free from retaliation and rights as a family member of a protected whistleblower, termination of plaintiff William Foley merely because his father was a whistleblower, and intentional abuse of control, as being ultimate facts rather than mere statutory language. (Opp., at p. 11:11-35; see Complaint, ¶¶ 65, 79, 80, 103.) Taking these allegations as true, and reading them as a whole in the context of the pleading, they sufficiently allege malice or oppression under Civil Code section 3294.

The Motion to Strike is accordingly **DENIED** as to the punitive damages allegations.

B. Alter Ego Allegations

Alter ego allegations are sufficient where they allege specific, non-conclusory facts satisfying a two-pronged test: (1) such a unity of interest and ownership between the corporation and its equitable owner that their separate personalities do not in reality exist, and (2) an inequitable result would follow if the acts in question are treated as those of the corporation alone. (See *JPV I L.P. v. Koetting* (2023) 88 Cal. App. 5th 172; *Toho-Towa Co. v. Morgan Creek Prods.* (2013) 217 Cal.App.4th 1096 (*Toho-Towa.*) Application of the alter ego doctrine does not depend upon pleading or proving fraud. (*Toho-Towa, supra*, 217 Cal.App.4th 1096.) It is sufficient to allege that adherence to the fiction of the separate existence of the corporation would

promote injustice. (*Misik v. D'Arco* (2011)197 Cal. App. 4th 1065; *Cam-Carson, LLC v. Carson Reclamation Auth.* (2022) 82 Cal. App. 5th 535.)

Here, plaintiff alleges that defendant Schnur “personally committed the frauds and violated the laws as set forth in this complaint, and who has hidden and currently hides behind Cobalt ... to perpetrate frauds, circumvent statutes, and/or accomplish other wrongful or inequitable purposes”; “derives actual and significant monetary benefits by and through his unlawful conduct, and by using Cobalt ... as the funding source for his own personal expenditures”; that defendants “were segregated to appear as though separate and distinct for purposes of perpetrating a fraud, circumventing a statute, or accomplishing some other wrongful or inequitable purpose”; that Defendant Cobalt “does not comply with all requisite corporate formalities to maintain a legal and separate corporate existence”; and that “[t]he business affairs of Schnur, Cobalt, and DOES 1-50 are, and at all times relevant were, so mixed and intermingled that the same cannot reasonably be segregated.” (Complaint, ¶ 10(a)-(e).) These facts allege such a unity of interest and ownership between the corporation and its equitable owner that their separate personalities do not in reality exist, and are such that an inequitable result would follow if the acts in question are treated as those of the corporation alone.

The Motion to Strike is accordingly **DENIED** as to alter ego allegations.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 12**

26-CIV-00382

SANTOS PEREZ VS. ABM INDUSTRIES INCORPORATED, ET AL

SANTOS PEREZ
ABM INDUSTRIES INCORPORATED

W. ZEV ABRAMSON
ALEJANDRO G. RUIZ

DEFENDANT ABM INDUSTRIES INCORPORATED'S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING:

The Motion to Compel Arbitration brought by defendant ABM Industries, Inc. is **GRANTED**.

Plaintiff's Objections to the Declaration of Paige Tamada

The first of the fifteen Objections to the Declaration of Paige Tamada is directed to the entire Declaration, and is **SUSTAINED**. Thus, the other fourteen need not be reached.

Plaintiff's Objections to the Declaration of Scott J. Saylin

Objections Nos. 1 and 3: **OVERRULED**.

Objection No. 2: **SUSTAINED**. (Evid Code, § 1152, subd. (a).)

Defendant's Evidentiary Objections to the Declaration of Santos Perez are **OVERRULED**.

A. Background

ABM hired plaintiff on about June 9, 2023, as a janitor. On May 21, 2025, plaintiff injured his back at work, which he reported to one of his managers, defendant Herber Rodriguez, the next day. Plaintiff was on medical leave for the resulting disability from May 22, 2025, through August 7, 2025. He returned to work with medical restrictions on August 8, 2025, when defendant Rodriguez was out. When Rodriguez returned to work on about August 20, 2025, he refused to continue the accommodations that other managers had made and immediately assigned plaintiff duties that exceeded his restrictions. When plaintiff explained that he could not perform his regular duties without the accommodation that had been approved, Rodriguez terminated plaintiff's employment.

ABM has filed this Motion to ask the court to compel plaintiff to arbitrate this matter pursuant to the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA), and to stay this action pending arbitration. (Code Civ. Proc., §§ 1281.2 & 1281.4.)
